

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

August 28, 2023

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Mr. Segrave moved to approve, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on August 14, 2023. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing to receive comments and input for the West Downtown Urban Renewal Plan and Project as required by Wyoming Statute § 15-9-109. There being no comments or input, and purpose of the hearing having been met, Mayor Collins closed the public hearing.

ORDINANCE –3rd READING – Defining the Terms and Conditions of Employment for sworn officers of the Cheyenne Police Department for the Fiscal Year 2023-2024. Reporting for Finance Committee, Mr. White moved to approve on third and final reading, seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body. (#4520)

ORDINANCE –3rd READING – Creating Section 2.08.060, City Employees and Immediate Family Members; Conflict of Interest Policy, of Chapter 2.08, City Officers and Employees Generally, of Title 2, Administration and Personnel, of the Municipal Code of the City of Cheyenne, Wyoming, requiring the promulgation of a Conflict of Interest Policy for employees of the City of Cheyenne as specified and making a conforming amendment to Section 2.52.010, Regulations and Benefits. Reporting for Public Services Committee, Mr. Cook moved to approve on third and final reading, seconded by Dr. Rinne. Motion carried. Voting “yes” – all members of the governing body. (#4521)

ORDINANCE – 3rd READING – Creating a new Section 15.50.070, Neglected Structure, of Chapter 15.50, Historic Design Guideline, of Title 15, Buildings and Construction, of the Municipal Code of the City of Cheyenne, Wyoming. Mr. Cook moved to approve on third and final reading, seconded by Mr. Johnson. Mr. Laybourn moved to postpone to September 11, 2023, seconded by Mr. White. Motion to postpone carried. Voting “yes” all members of the governing body. Public comments were made by: Milward Simpson, Historic Preservation Board, Kathy Scigliano and Maeke Ermarth. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Laybourn and Mr. Roybal.

ORDINANCE – 2nd READING – Submitting to the qualified property owners of real property within the boundaries of the Cheyenne Downtown Development Authority District of Cheyenne, Wyoming, excluding real property used exclusively for residential purposes, at a Special Election on Wednesday, October 18, 2023, the following question: ‘Shall a Special Assessment of twenty (20) mills be levied upon the assessed value of real property within the boundaries of the Cheyenne Downtown Development Authority District, excluding real property used exclusively for residential purposes, for a period of four (4) years pursuant to the provisions of Wyo. Stat. § 15-9-217(b) for the purposes of (1) Landscaping or maintenance of public areas; (2) Planning or management of development or improvement activities; (3) Promotion of public events; and (4) Activities in support of business recruitment and development?’. Mr. White moved to approve on second reading, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body. Comment was made by the following member of the governing body: Mr. Laybourn.

ORDINANCE – 2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from Frontier Mall PUD - Planned Unit Development (Ordinance No. 3132) to CB - Community Business for land located at Lot 7B, Block 1, Frontier Mall). Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. Public comment was made by: Shane Hansen, agent for the applicant, Steil Surveying Services. Comment was made by the following member of the governing body: Dr. Aldrich.

ORDINANCE – 2nd READING – Pursuant to Section 2.2.2 Planned Development - Regulating Plan or Development Master Plan and Section 5.6.2 PUD - Planned Unit Development District of the Unified Development Code, amending Ordinance No. 4286 by modifying certain standards of the adopted district, Planned Unit Development (PUD), for Sweetgrass (located southeast of the intersection of College Drive and Avenue C). Mr. Cook moved to approve on second reading, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Creating Chapter 8.68, Limiting the use of Plastic Single Use Carryout Bags, of Title 8, Health and Safety, of the Municipal Code of the City of Cheyenne, Wyoming, regulating the use of single use plastic bags as specified. Mr. White advised there was no recommendation from Finance Committee. Mr. White moved to approve on second reading, seconded by Mr. Johnson. Mr. Johnson moved to amend by substitute dated August 25, 2023, seconded by Dr. Rinne. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Dr. Rinne moved to amend Section 3 by updating the effective date to July 1,

2024, seconded by Mr. Johnson. Motion to amend carried with all members of the governing body voting “yes” with the exception of Dr. Aldrich, Mr. Laybourn and Mr. Segrave voting “no”. Dr. Rinne moved to amend Section 8.68.030 by deleting “environmental service fee” from the title and deleting subsections B-E, seconded by Mr. Johnson. Motion to amend failed due to a tie vote. Voting “yes” – Mr. Esquibel, Mr. Johnson, Dr. Rinne, Mr. Roybal and Mr. White. Voting “no” – Dr. Aldrich, Mayor Collins, Mr. Cook, Mr. Laybourn and Mr. Segrave. Main motion as amended by substitute, as amended failed. Voting “yes” – Mr. Esquibel, Mr. Johnson, Dr. Rinne and Mr. Roybal. Voting “no” – Dr. Aldrich, Mr. Cook, Mr. Laybourn, Mr. Segrave and Mr. White. Public comment was made by: Kathy Russell, Jacob Wasserberger, Brian Pixley, Richard Lyle, Nancy Loomis, Mark Moody, John Young, Gail Young, Marilyn Burton, Dale Steenburgen, Greater Cheyenne Chamber of Commerce, Evan Williams, Cathy Deister, Maeke Ermarth, Doug Powell, Kathy Scigliano, Darryl Orr, Adrian Crader, Kathy Selock, Steve Borin, Alan Shobin and Zachary Taylor. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Cook, Mr. Esquibel, Dr. Rinne, Mr. Segrave and Mr. White.

Following a brief recess, Mayor Collins reconvened the meeting at 7:47 p.m.

ORDINANCE –1st READING – Amending Section 5.8.2.h of the Unified Development Code (UDC), amending Manufactured Homes on Single Platted Properties or Tracts – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Amending Section 15.08.031, Building Permit Fees- Exceptions for Incentivization Program, of Chapter 15.08, International Building Code Adopted, of Title 15, Buildings and Construction, of the Code of the City of Cheyenne, Wyoming, to create incentives for attainable housing and historic preservation – referred to Public Services Committee. (Sponsors – Dr. Aldrich, Mr. Johnson and Mr. White)

[CA] RESOLUTION – Re-appropriating the Fiscal Year 2023 Budget of the City of Cheyenne according to the provisions of W.S. §§ 16-4-112 & 16-4-113. Motion (per Consent Agenda) carried. (#6346)

[CA] RESOLUTION – Expressing the support of the Governing Body for the establishment of an Urban Renewal Authority Fiduciary Fund. Motion (per Consent Agenda) carried. (#6347)

[CA] RESOLUTION – Authorizing the acceptance of a Federal Emergency Management Agency FY 2022 Assistance of Firefighters Grant in the amount of \$387,043.63 and authorizing the contribution of \$38,704.37 from the Fifth and Sixth Penny funds in support of this program, for the purpose of purchasing breathable air fill stations (FEMA AFG Grant) – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Supporting the conversion of a portion of Dutcher Ball Fields located at 4200 Converse Avenue from perpetual public outdoor recreation use and committing to purchase and encumber one additional replacement property to be deed restricted for perpetual public outdoor recreation use pursuant to the requirements set forth in the Land and Water Conservation Fund Act – referred to Public Services Committee. (Sponsor – Mr. Laybourn)

[CA] RESOLUTION – Approving the West Downtown Urban Renewal Plan and West Downtown Urban Renewal Project pursuant to Wyoming Statute § 15-9-110 – referred to Public Services Committee. (Sponsors – Mr. Johnson and Mr. White)

[CA] RESOLUTION – To accept and approve the federally funded Dry Creek Drainage Master Plan Update submitted by GLM Design Group – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] Grant Agreement between the City of Cheyenne and the Federal Transit Administration to fund Transit Operations (FTA Section 5307 Grant). Motion (per Consent Agenda) carried (in an amount of \$2,418,763.00). (#7810)

[CA] Professional Services Agreement between the City of Cheyenne and Wilson & Company, Inc. for consultant services for the Pershing Blvd. and Windmill Rd. Intersection and Signal Design Project (2019-2022 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$180,182.00). (#7811)

Professional Services Agreement between the City of Cheyenne and Design Workshop, Inc. for the City of Cheyenne Parks and Recreation Master Plan Project (American Rescue Plan Federal Recovery Funds). Mr. White moved to approve in an amount not to exceed \$274,845.00, seconded by Mr. Roybal. Mr. White moved to amend by substitute dated August 21, 2023, seconded by Mr. Roybal. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body. (#7812)

Professional Services Agreement between the City of Cheyenne, Cheyenne Metropolitan Planning Organization, and TischlerBise for the Laramie County Roads Impact Fee Study (MPO Funds). Mr. White advised the item was reviewed under other items for the agenda at the August 21, 2023, Finance Committee meeting, therefore, provisions of Title 2 of City Code have been met. Mr. White moved to approve in an amount not to exceed \$97,840.00, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body. (#7813)

Cooperative Agreement between the City of Cheyenne and the Wyoming Department of Transportation for Project ARSCT N561 A02, US 30/Pershing Blvd. to Christensen Road, Cheyenne Streets, Laramie County (2023-2026 Optional 1% Sales Tax Fund and 2017 Specific Purpose Option Tax Fund). Mr. White advised the item was reviewed under other items for the agenda at the August 21, 2023, Finance Committee meeting, therefore, provisions of Title 2 of City Code have been met. Mr. White moved to approve in an amount not to exceed \$2,823,800.00, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body. (#7814)

[CA] Real Estate Purchase Agreement between the City of Cheyenne and Trace G. Lewark and Mary J. Lewark for the purchase of real property located at 700 Gettysburg Drive, City of Cheyenne, consisting of approximately 189,921.6 square feet, more or less and associated easement documents (2021 Specific Purpose Option Tax Fund) – referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Office of Youth Alternatives, and Laramie County to provide services for juveniles appearing in the Laramie County Circuit Court and the Municipal Court of the City of Cheyenne for supervised probation, diversion, and the coordination of drug and alcohol services (Revenue to the City) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Volunteers of American Northern Rockies, Alcohol Receiving Center, to provide alcohol and drug detoxification services (General Fund) – referred to Finance Committee.

[CA] Human Services Agreement between the City of Cheyenne and United Way of Laramie County to provide services to various community programs (2023-2026 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Safe Harbor to provide a safe and secure environment to families who have been affected by abuse (General Fund) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Ayers Associates Inc for the West Crow Creek Greenway Plan (MPO Funds) – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and Wyoming Housing Network, Inc. to provide financial assistance relating to the construction of affordable housing for the Robin's Point Apartments Housing Project (Housing Loans Fund) – referred to Finance Committee.

[CA] Amendment to Contract No. 7521 between the City of Cheyenne and Laramie County for Animal Control Services (Revenue to the City). Motion (per Consent Agenda) carried (in an amount of \$130,800.00). (#7521)

Re-appointments of Wendy Soto and JC Manalo to the Housing and Community Development Advisory Council. Dr. Aldrich moved to approve, seconded by Mr. Roybal. Motion carried. Voting "yes" – all members of the governing body with the exception of Mayor Collins who did not vote (mayoral appointments).

Appointment of Heather Hirsch to the Mayor's Council for People with Disabilities. Dr. Aldrich moved to approve, seconded by Mr. Laybourn. Motion carried. Voting "yes" – all members of the governing body with the exception of Mayor Collins who did not vote (mayoral appointment).

There were no comments made on the Voucher Report as presented.

There were no comments made on the Revenue Report as presented.

Announcement was made of a Public Hearing to be held on September 11, 2023 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting, to receive public comments and input relating to the Federally Funded Dry Creek Drainage Master Plan Update.

Announcement was made that due to City offices being closed for the Labor Day holiday on Monday, September 4, 2023, regularly scheduled City Council Committee meetings will instead be held in the Municipal Building, Room 104, 2101 O'Neil Avenue, Cheyenne, Wyoming, and via electronic conference meetings as follows: Finance Committee will meet Tuesday, September 5, 2023 at Noon and Public Services Committee will meet Wednesday, September 6, 2023 at Noon.

The following members of the governing body made comments under other business: Dr. Aldrich, Mr. Laybourn and Mr. White.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:58 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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